

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

INDEX NO.:

-----X
NAGEEB ALQIFI and DAWOOD MUSLEH,

Plaintiffs,

Plaintiff designates Kings
County for trial.

Date of Filing: _____

Basis of venue is the
Plaintiff's residence

- against-

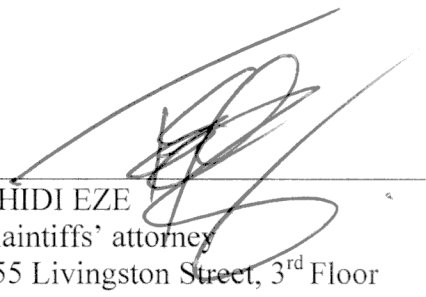
SUMMONS

THE CITY OF NEW YORK,
P.O PETER CHIOPOLLO and P.O. "JOHN DOES"
1 thru 9, of the 67th Precinct
Defendants.

-----X
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the within complaint in this action by filing your Answer at the Kings County Supreme Court Clerk's office located at 360 Adam Street, Brooklyn New York 11201, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint annexed herewith.

Dated: Brooklyn, New York
January 3, 2020


CHIDI EZE
Plaintiffs' attorney
255 Livingston Street, 3rd Floor
Brooklyn, NY 11217

Defendants' Address:

- 1) Corporation Counsel, City of New York, 100 Church Street, New York, NY 10007
- 2) Peter Chiopolo, NYPD 67th Precinct, 2820 Snyder Avenue, Brooklyn NY 11226

NOTE: The law provides that: (a) If this summons is served by its delivery to you personally within the State of New York, you must appear and answer within TWENTY (20) days after such service; or (b) If this summons is served by any means other than personally delivery to you within the State of New York, you must appear and answer within THIRTY (30) days after proof of the service thereof is filed with the Clerk of the Court.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----x Index No.:
Nageeb AlQifi and Dawood Musleh,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK,
P.O PETER CHIPOLO and P.O. "JOHN DOES"
1 thru 9, of the 67th Precinct,Defendants.
-----x

Plaintiffs, by their attorney, Chidi Eze, Esq., complaining of the City of New York, Police Officer Peter Chiopolo and Police Officers John Doe and Jane Doe 1 'through' 3, upon information and belief, allege the following:

NATURE OF ACTION AND JURISDICTION.

1. This is an action at law to redress the deprivation, under color of statute, ordinance, regulation, custom or usage, by Defendants of the rights, privileges and immunities secured to Plaintiffs under Article 1 Section 12 of the State of New York Constitution and New York State Common Law and arising under the First, Fourth, Fifth and Fourteenth Amendments to the Constitution, and by 42 U.S.C. §1983 [and §1985].
2. Jurisdiction is specifically conferred on this court by the Constitution of the United States.
3. Venue is proper because plaintiffs reside in the County of Kings, New York.

PARTIES.

4. During all times relevant and material to this Complaint, Plaintiffs were, and still are, United States Citizens, residing in Brooklyn, City and State of New York.

5. During all times relevant and material to this case, Defendant City of New York was and still is a municipal corporation, incorporated and existing under the laws of the State of New York.

6. During all times relevant and material to this case, Defendant Police Officers were employees of Defendant City of New York through its Police Department.

7. During all times relevant and material to this case, the actions of the defendant officers were part of the custom, practice, usage, regulation and/or direction of Defendant City of New York through their New York City Police Department (hereinafter NYPD), and as such Defendant City of New York is responsible for the actions of the officers. Defendant City of New York is further responsible for the actions of these individuals Defendants' under the principal agent/*respondeat superior* rule.

FULFILMENT OF ADMINISTRATIVE PREREQUISITES.

8. All conditions precedent for the filing of this action have been complied with: on or about December 13, 2018 written Notices of Claim, sworn to by Plaintiffs, were served upon Defendant City of New York to the person designated by law as one to whom a summons against Defendant City of New York may be delivered in an action in the District Court. And on March 20, 2019 the Notices of Claim were Amended and served upon the City in the same manner.

Plaintiff Nageed Alqifi was assigned the Claim Number 2018PI035903, and Plaintiff Dawood Musleh was assigned the Claim Number 2018PI035600.

9. At least thirty days have elapsed since the service of the Notices of Claim and their Amended versions, and an adjustment or payment of the claims have been neglected or refused by Defendants.

FACTS COMMON TO ALL CAUSES OF ACTION.

10. The claim arose out of the incidents that transpired on October 31, 2018, at approximately 10:00 A.M., at 538 East 52nd Street, Brooklyn New York, County of Kings, City and State of New York.

11. On October 31, 2018, at approximately 10:00 a.m., the Plaintiffs were lawfully minding their business inside the premises known as and located at 538 East 52nd Street in Brooklyn, when the defendant police officers storm inside said premises and immediately proceeded to arrest them. Plaintiffs were the only persons inside this one family house at that time. Plaintiffs were asked if they had permission to enter and remain inside the premises, to which they responded in the affirmative. Plaintiffs told the officers that both landlord and leaseholder were aware of their presence in the premises, and had given them the permission to remain in the premises. Notwithstanding any evidence to the contrary, the officers handcuffed and placed the plaintiffs under arrest for allegedly Trespassing onto the premises.

12. The Plaintiffs were taken to the 67th Precinct, where they were finger printed and processed. Shortly thereafter, while the Plaintiffs were still held at the Precinct, Mr. Nassir Mosleh, the agent of the landlord, Duce Realty, Inc., came to the 67th Precinct to support plaintiffs and request their release. Mr. Nassir spoke with the arresting Officer, Officer Chiopolo, and at

that time, Mr. Nassir told Mr. Chiopolo that the arrested individuals had the permission to enter and remain in the premises. Mr. Nassir Mosley also presented Officer Chiopolo with a Court Order that stated that the premises belonged, exclusively, to Duce Realty, Inc., and that he was an agent of Duce Realty. However, Officer Chiopolo and the defendants continued to defy the Court Order, and continued to detain the plaintiffs.

13. At about 7pm that day, Plaintiffs were transported to Brooklyn Central Bookings, and charged with Criminal Trespass in the Second Degree (PL 140.15.1), and Third Degree (PL 140.10[A]), and Trespass (PL 140.05).

14. The following day, November 1, 2018 at about 1:00 A.M., Plaintiff AlQifi was arraigned before a Judge and at that time, he was released on his own recognizance. On November 1, 2018 at about 11A.M., Plaintiff Musleh was arraigned before a Judge and at that time he was released on his own recognizance.

15. Thereafter, Plaintiffs appeared in court once to defend themselves against these false charges, and on December 11, 2018 the charges against the Plaintiffs were dismissed.

16. Plaintiffs have been damaged by the actions of the City of New York and their agents, as they were made to endure a degrading and humiliating body cavity search, harassed, were arrested and imprisoned for an amount of time exceeding 15 hours without probable cause, lost respect and dignity before family and friends, physically and emotionally damaged, suffered reputation injuries, psychological and emotional distress, some or all of which may be permanent.

17. P.O. John Doe and Jane Doe 1 'through' 3 acted under pretense and color of state law, in their individual and official capacities and within the scope of their respective employment as NYPD officers. The conduct of the defendant officers complained of herein was beyond the scope of their jurisdiction, without legal authority, and in direct abuse of their authority.

18. Defendant City of New York is further responsible for the actions of the individual Defendants' under the principal agent/*respondeat superior* rule and under municipal liable pursuant to section 1983.

AND AS FOR A FIRST CAUSE OF ACTION

19. Plaintiffs repeat and re-allege paragraphs 1 through 18 as if each paragraph is repeated verbatim herein.

20. In violation of Article 1 Section 12 of the New York State Constitution, and New York State Common Law, the defendant police officers falsely arrested and imprisoned Plaintiffs for approximately 15 hours without probable cause, deprived them of their rights, remedies, privileges, and immunities guaranteed to them under said law.

21. In addition, the defendant officers conspire to deny plaintiffs their Constitutional rights, secured to her by Article 1 Section 12 of the New York State Constitution, and took several overt steps in furtherance of the conspiracy as set forth above.

22. Plaintiffs were denied freedom and liberty, and therefore suffered emotional and mental distress as a result. Plaintiffs claim compensatory damages in the amount of \$2,000,000 each, for the violation of their rights under Common Law and for emotional and mental distress. In addition, because the defendant police officers acted with malice and intentional disregard for plaintiffs' Constitutional rights when they arrested and imprisoned them, Plaintiff seeks \$400,000 each, in punitive damages.

AND AS FOR A SECOND CAUSE OF ACTION

23. Plaintiffs repeat and re-allege paragraphs 1 through 22 as if each paragraph is

repeated verbatim herein.

24. The Defendant police officers were acting as agents' of the City of New York when they arrested and detained Plaintiffs without probable cause. Therefore, under the principal agent/*respondeat superior* rule, the City of New York is jointly and severally liable with the defendant police officers' for the compensatory damages plaintiffs sustained as a result of the actions of these police officers.

25. Plaintiffs claim compensatory damages in the amount of \$2,000,000, each, for the violations of their rights, resulting in severe physical, emotional and mental distress. In addition, because the individual Defendants acted with malice and intentional disregard for their Constitutional rights, plaintiffs seek \$400,000, each, in punitive damages against the individual defendants.

AND AS FOR A THIRD CAUSE OF ACTION

26. Plaintiffs repeat and re-allege paragraphs 1 through 25 as if each paragraph is repeated verbatim herein.

27. The defendant police officers arrested and imprisoned Plaintiffs without probable cause, without a warrant and with malice and intentional disregard for their constitutional rights. The Defendants, acting under color of State Law, violated Plaintiffs' right to be free from unreasonable seizures, secured to them under the Fourth and Fourteenth Amendments to the Constitution, and their right not to be deprived of liberty without due process of law, secured under the Fifth and Fourteenth Amendments. By denying Plaintiffs their Constitutional rights under color of State Law, the Defendants violated 42 U.S.C. §1983. In addition, the defendant officers conspire to deny plaintiffs their Constitutional rights secured to them by 42 U.S.C. §1983

[1985], and took several overt steps in furtherance of the conspiracy as set forth above.

28. As a result of the seizure of their persons, Plaintiffs were denied their freedom and liberty and suffered emotional and mental distress thereof. Plaintiffs claim compensatory damages in the amount of \$2,000,000, each. In addition, because the defendant police officers acted with malice and intentional disregard for their Constitutional rights when they arrested and imprisoned them, Plaintiff seeks \$400,000, each, in punitive damages.

AND AS FOR A FOURTH CAUSE OF ACTION

29. Plaintiffs repeat and re-allege paragraphs 1 through 28 as if each paragraph is repeated verbatim herein.

30. The defendant police officers were acting as agents of the City of New York when they carried out the actions complained of herein. The defendant Police Officers' violations of the Plaintiffs' Constitutional and Federal Law rights, as complained of herein, were carried out under the unlawful and injurious policies, customs, and practices of the City of New York and its Police Department. Therefore, the City of New York is jointly and severally liable with the defendant police officers for the compensatory damages Plaintiffs sustained herein.

31. Plaintiffs claim compensatory damages in the amount of \$2,000,000, each, for the violation of these rights, resulting in physical, emotional and mental distress. In addition, because the Defendants acted with malice and intentional disregard for their Constitutional rights, Plaintiffs each seek \$400,000 in punitive damages against the individual officers jointly and severally.

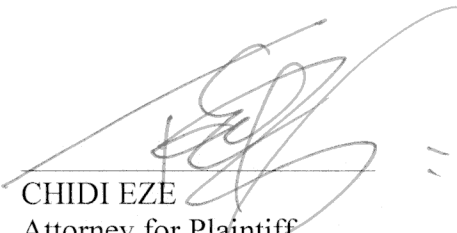
WHEREFORE, Plaintiffs pray the Court for judgment as follows for each Cause of

Action:

- i. \$2,000,000, each, in compensatory damages against all the defendants, jointly and severally;
- ii. \$400,000, each, in punitive damages against the individual defendant police officers, jointly and severally;
- iii. Attorney's fees, plus the costs and disbursements of these actions against all Defendants, jointly and severally;
- iv. Such other relief as the Court may deem just, proper and equitable.

Dated: Brooklyn, New York
November 18, 2019

By:



CHIDI EZE
Attorney for Plaintiff
255 Livingston Street, 3rd Floor
Brooklyn, NY 11217 (718) 643-8800

VERIFICATION

STATE OF NEW YORK)
COUNTY OF KINGS) ss:

NAGEEB ALQIFI, deposes and say:

I am the PLAINTIFF in this case. I have read the foregoing COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief, and as to those matters I believe them to be true.

Sign _____

NAGEEB ALQIFI

Sworn to before me this

15th Day of Nov., 2019

NOTARY PUBLIC

CHIDI EZE, ESQ.
Notary Public of New York
No. 02EZ6097235
Qualified Kings County
Commission Expires Aug. 15, 2023

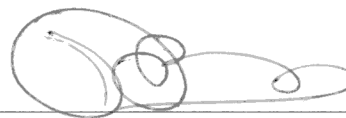
VERIFICATION

STATE OF NEW YORK)
COUNTY OF KINGS) ss:

DAWOOD MUSLEH, deposes and say:

I am the PLAINTIFF in this case. I have read the foregoing COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief, and as to those matters I believe them to be true.

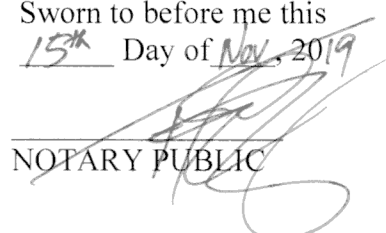
Sign



DAWOOD MUSLEH

Sworn to before me this

15th Day of Nov, 2019


NOTARY PUBLIC

CHIDI EZE, ESQ.
Notary Public of New York
No. 02EZ6097238
Qualified Kings County
Commission Expires Aug. 16, 2023